



## Notification Waiver Determination

### Blackbird Ventures – Heidi Health

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| <b>Acquisition</b>           | Blackbird Guardians Coinvestment Pty Ltd as trustee for Blackbird Guardians Coinvestment Trust, Blackbird CB Pty Limited as trustee for Blackbird CB Co-Investment Trust, Blackbird FSA Pty Ltd as trustee for Blackbird FSA Co-Investment Trust, Blackbird NGS Pty Ltd as trustee for Blackbird NGS Co-investment Trust, Blackbird Aware Pty Limited as trustee for Blackbird Aware Super Co-investment Vehicle Trust and Blackbird Hotham Pty Ltd as trustee for Blackbird Hotham Co-Investment Trust (together, the <b>Blackbird Funds</b> ) applied for a notification waiver in respect of the Blackbird Funds' proposed acquisition of shares of Series C Preferred Stock in Osker Enterprises Pty Ltd ( <b>Heidi</b> ), as described in the transaction documents provided as part of the application (the <b>Acquisition</b> ). |
| <b>Determination</b>         | The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>Date of determination</b> | 2 October 2026                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

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| <b>Parties to the Acquisition</b>    | <p>The Blackbird Funds are venture capital co-investment fund vehicles managed by Blackbird Ventures Pty Ltd or its affiliates (<b>Blackbird Ventures</b>). Blackbird Ventures is a venture capital firm based in Australia and New Zealand that invests in early-stage and high-growth technology companies. Funds managed by Blackbird Ventures (including the Blackbird Funds) hold minority investments in hundreds of companies in Australia, New Zealand and around the world. Funds managed by Blackbird Ventures (not including the Blackbird Funds) are existing shareholders of Heidi.</p> <p>The target, Heidi, is a healthcare technology company that supplies artificial intelligence (<b>AI</b>) software designed to assist clinicians with clinical documentation and other healthcare-related administrative and clinical workflows. Heidi's products are used across a range of healthcare settings and specialties, including general practitioners, medical specialists, allied health, dentistry and veterinary services.</p> |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (the <b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given:</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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|  | <ul style="list-style-type: none"><li>a. the increment to Blackbird Ventures’ existing interest in Heidi is small</li><li>b. the Acquisition does not create any new horizontal or vertical overlap between Blackbird Ventures (and its connected entities) and Heidi in the supply of AI scribe solutions for medical and allied health applications in Australia</li><li>c. there are alternative suppliers of AI scribe solutions for medical and allied health applications in Australia.</li></ul> <p>In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.</p> <p>Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC’s approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC’s <a href="#">guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**